

Court No. - 1

Case :- WRIT - C No. - 34944 of 2019

Petitioner :- Uttam Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Azhar Hussain

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Azhar Hussain, learned counsel for the petitioner, Sri Abhishek Srivastava, learned counsel for the respondent Nos.2 and 3, learned Standing Counsel for respondent no.1 and perused the record.

By means of the present petition, the petitioner has sought relief in the nature of certiorari quashing the order dated 9.7.2019 passed by respondent no.3-Executive Engineer in exercise of power under the Electricity Supply Code, 2005.

The argument advanced by learned counsel for the petitioner is that though there is direction by this Court to decide the representation of the petitioner but the respondents while deciding the representation of the petitioner have not discussed any material on the basis of which they have recorded the finding that bill is correct as per records available with them. He, therefore, argues that the order suffers from perversity and cannot be sustained in law.

Per contra the argument of learned counsel for the Corporation is that the petitioner has statutory remedy available against the order impugned under Clause 7.10 of the U.P. Electricity Supply Code, 2005 in which there is provision to approach the Electricity Consumer Grievance Redressal Forum against the decision taken by the Executive Engineer in respect of the correctness of bills if the petitioner is aggrieved and not satisfied.

Having heard learned counsel for the parties and considering the question of correctness of bills and verification of the records, we are of the view that there is pure question of fact involved which cannot be examined by this Court, more particularly when there is specific provision dealing with the said issues and the petitioner has remedy to approach the Consumer Grievance Redressal Forum. We leave it open to the petitioner to apply before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. In case petitioner approaches the said

Forum within the period of two weeks from today, the Consumer Grievance Redressal Forum shall disposed of the application of the petitioner within a further period of four weeks, of-course, by a reasoned and speaking order.

Thus the present writ petition stands finally disposed of.

(Ajit Kumar, J.)

(Ramesh Sinha, J.)

Order Date :- 31.10.2019

Gaurav